Model Bylaws (Societies Regulation 2015, Schedule 1)

Bylaws of Mount Waddington Access Society (the "Society")

PART 1 – DEFINITIONS AND INTERPRETATION

Definitions

1.1 In these Bylaws:

"Act" means the *Societies Act* of British Columbia as amended from time to time;

"Board" means the directors of the Society;

"Bylaws" means these Bylaws as altered from time to time.

Definitions in Act apply

1.2 The definitions in the Act apply to these Bylaws.

Conflict with Act or regulations

1.3 If there is a conflict between these Bylaws and the Act or the regulations under the Act, the Act or the regulations, as the case may be, prevail.

PART 2 – MEMBERS

Application for membership

2.1 A person may apply to the Board for membership. Membership is open upon application and acceptance by the Board. Adult members aged 18 or older in good standing are voting members. Youth under 18 may join free of dues with parent or guardian consent and are non-voting members.

Duties of members

2.2 Every member must uphold the constitution of the Society and must comply with these Bylaws.

Amount of membership dues

2.3 Annual dues for adult members are initially $10, and may subsequently be determined by the Board. Youth members pay no dues. Membership is renewed annually.

Member not in good standing

2.4 A member is not in good standing if the member fails to pay the member's annual membership dues, if any, and the member is not in good standing for so long as those dues remain unpaid.

Member not in good standing may not vote

2.5 A voting member who is not in good standing

(a) may not vote at a general meeting, and

(b) is deemed not to be a voting member for the purpose of consenting to a resolution of the voting members.

Termination of membership if member not in good standing

2.6 Membership ends on resignation, death, non-renewal, or after six consecutive months not in good standing. The Board may suspend or terminate membership for misconduct after written notice, a reasonable opportunity to respond, written reasons and an opportunity to appeal under a fair procedure adopted by the Board. The Board may immediately restrict participation in activities for safety reasons without terminating membership.

PART 3 – GENERAL MEETINGS OF MEMBERS

Time and place of general meeting

3.1 A general meeting must be held at the time and, if appli- cable, place the Board determines.

Ordinary business at general meeting

3.2 At a general meeting, the following business is ordinary business:

(a) adoption of rules of order;

(b) consideration of any financial statements of the Society presented to the meeting;

(c) consideration of the reports, if any, of the directors or auditor;

(d) election or appointment of directors;

(e) appointment of an auditor, if any;

(f) business arising out of a report of the directors not requiring the passing of a special resolution.

Notice of special business

3.3 A notice of a general meeting must state the nature of any business, other than ordinary business, to be transacted at the meeting in sufficient detail to permit a member receiving the notice to form a reasoned judgment concerning that business.

Chair of general meeting

3.4 The following individual is entitled to preside as the chair of a general meeting:

(a) the individual, if any, appointed by the Board to preside as the chair;

(b) if the Board has not appointed an individual to preside as the chair or the individual appointed by the Board is unable to preside as the chair,

(i) the president,

(ii) the vice-president, if the president is unable to preside as the chair, or

(iii) one of the other directors in attendance at the meeting, if both the president and vice-president are unable to preside as the chair.

Alternate chair of general meeting

3.5 If there is no individual entitled under these Bylaws who is able to preside as the chair of a general meeting within 15 minutes from the time set for holding the meeting, the voting members who are in attendance must elect an individual present at the meeting to preside as the chair.

Quorum required

3.6 Business, other than the election of the chair of the meeting and the adjournment or termination of the meeting, must not be transacted at a general meeting unless a quorum of voting members is in attendance.

Quorum for general meetings

3.7 The quorum for a general meeting is at least 25% of voting members, rounded up to the next whole number, and never fewer than 3 voting members. Directors who are voting members count toward quorum.

Lack of quorum at commencement of meeting

3.8 If, within 30 minutes from the time set for holding a general meeting, a quorum of voting members is not in attendance,

(a) in the case of a meeting convened on the requisition of members, the meeting is terminated, and

(b) in any other case, the meeting stands adjourned to the same day in the next week, at the same time and , if applicable, place, and if, at the continuation of the adjourned meeting, a quorum is not present within 30 minutes from the time set for holding the continuation of the adjourned meeting, the voting members who are present constitute a quorum for that meeting.

If quorum ceases to be present

3.9 If, at any time during a general meeting, there ceases to be a quorum of voting members present, business then in progress must be suspended until there is a quorum in attendance or until the meeting is adjourned or terminated.

Adjournments by chair

3.10 The chair of a general meeting may, or, if so directed by the voting members at the meeting, must, adjourn the meeting from time to time and, if applicable, from place to place, but no business may be transacted at the continuation of the adjourned meeting other than business left unfinished at the adjourned meeting.

Notice of continuation of adjourned general meeting

3.11 It is not necessary to give notice of a continuation of an adjourned general meeting or of the business to be transacted at a continuation of an adjourned general meeting except that, when a general meeting is adjourned for 30 days or more, notice of the continuation of the adjourned meeting must be given.

Order of business at general meeting

3.12 The order of business at a general meeting is as follows:

(a) elect an individual to chair the meeting, if necessary;

(b) determine that there is a quorum;

(c) approve the agenda;

(d) approve the minutes from the last general meeting;

(e) deal with unfinished business from the last general meeting;

(f) if the meeting is an annual general meeting,

(i) receive the directors' report on the financial statements of the Society for the previous financial year, and the auditor's report, if any, on those statements,

(ii) receive any other reports of directors' activities and decisions since the previous annual general meeting,

(iii) elect or appoint directors, and

(iv) appoint an auditor, if any;

(g) deal with new business, including any matters about which notice has been given to the members in the notice of meeting;

(h) terminate the meeting.

Methods of voting

3.13 At a general meeting, voting must be by a show of hands, an oral vote or another method that adequately discloses the intention of the voting members, except that if, before or after such a vote, 2 or more voting members request a secret ballot or a secret ballot is directed by the chair of the meeting, voting must be by a secret ballot.

Announcement of result

3.14 The chair of a general meeting must announce the outcome of each vote and that outcome must be recorded in the minutes of the meeting.

Proxy voting not permitted

3.15 Voting by proxy is not permitted.

Matters decided at general meeting by ordinary resolution

3.16 A matter to be decided at a general meeting must be decided by ordinary resolution unless the matter is required by the Act or these Bylaws to be decided by special resolution or by another resolution having a higher voting threshold than the threshold for an ordinary resolution.

PART 4 – DIRECTORS

Number of directors on Board

4.1 The Society must have no fewer than 3 and no more than 5 directors. Voting members determine the number of directors to elect at each annual general meeting.

Election or appointment of directors

4.2 The initial directors are named in the incorporation application. At each subsequent annual general meeting, voting members elect directors for one-year terms. Candidates must be nominated by a voting member, may be nominated from the floor, and must consent to serve. Except for the initial directors, a candidate must have been a member in good standing continuously for at least one year and meet statutory eligibility requirements.

Directors may fill casual vacancy on Board

4.3 The Board may, at any time, appoint a member as a director to fill a vacancy that arises on the Board as a result of the resignation, death or incapacity of a director during the director's term of office.

Term of appointment of director filling casual vacancy

4.4 A director appointed to fill a vacancy serves until the next annual general meeting, subject to the Act.

PART 5 – DIRECTORS' MEETINGS

Calling directors' meeting

5.1 A directors' meeting may be called by the president or by any 2 other directors.

Notice of directors' meeting

5.2 At least 2 days' notice of a directors' meeting must be given unless all the directors agree to a shorter notice period.

Proceedings valid despite omission to give notice

5.3 The accidental omission to give notice of a directors' meeting to a director, or the non-receipt of a notice by a director, does not invalidate proceedings at the meeting.

Conduct of directors' meetings

5.4 The Board may regulate its proceedings, meeting in person, electronically or in hybrid format, as needed but at least quarterly. Motions pass by a simple majority of votes cast. The chair has an ordinary vote and may cast a second, deciding vote on a tie, subject to applicable law.

Quorum of directors

5.5 The quorum for the transaction of business at a directors' meeting is a majority of the directors.

PART 6 – BOARD POSITIONS

Election or appointment to Board positions

6.1 Following each annual general meeting, the Board appoints from among the directors a president (chair), secretary and treasurer. The same director may serve as secretary and treasurer. No vice-president position is required.

Directors at large

6.2 Other directors serve as directors at large. The Board may reassign officer duties as needed.

Role of president

6.3 The president is the chair of the Board and is responsible for supervising the other directors in the execution of their duties.

Role of vice-president

6.4 If the president is unable to act, the Board designates another director to perform the president's duties.

Role of secretary

6.5 The secretary is responsible for doing, or making the necessary arrangements for, the following:

(a) issuing notices of general meetings and directors' meetings;

(b) taking minutes of general meetings and directors' meetings;

(c) keeping the records of the Society in accordance with the Act;

(d) conducting the correspondence of the Board;

(e) filing the annual report of the Society and making any other filings with the registrar under the Act.

Absence of secretary from meeting

6.6 In the absence of the secretary from a meeting, the Board must appoint another individual to act as secretary at the meeting.

Role of treasurer

6.7 The treasurer is responsible for doing, or making the necessary arrangements for, the following:

(a) receiving and banking monies collected from the members or other sources;

(b) keeping accounting records in respect of the Society's financial transactions;

(c) preparing the Society's financial statements;

(d) making the Society's filings respecting taxes.

PART 7 – REMUNERATION OF DIRECTORS AND SIGNING AUTHORITY

Remuneration of directors

7.1 Directors may not receive remuneration for serving as directors or for any other services to the Society. Reasonable, documented and approved out-of-pocket expenses may be reimbursed.

Signing authority

7.2 Any director may be designated as an authorized bank signer. Payments of $500 or less require one authorized approval; payments over $500 require approvals from two distinct authorized directors, subject to banking capabilities. A director may not approve a payment to themselves. Formal contracts and land-access agreements require Board approval and signing authority designated by the Board.

PART 8 – FINANCIAL ADMINISTRATION

8.1 The fiscal year ends December 31. The Board approves the annual operating budget.

8.2 Within an approved budget, a designated officer or staff member may authorize individual purchases up to $500. Purchases exceeding $500 require Board approval. Transactions must not be artificially divided to avoid this limit.

8.3 The treasurer provides financial reports to the Board at least quarterly and annual financial statements for presentation at the annual general meeting. The Board arranges annual internal financial oversight and may obtain independent review where requested or required by law.

8.4 The Society must not borrow money unless the borrowing is approved by special resolution of voting members.

8.5 Restricted grants and donations must be used in accordance with their lawful terms and separately identifiable in the Society's accounting records.

PART 9 – ACTIVITIES AND POLICIES

9.1 The Board may adopt, amend and repeal operational policies consistent with these Bylaws and applicable law.

9.2 The Board may establish or dissolve committees, appoint members to them and define their authority. Each committee must include at least one director.

9.3 The Board may appoint Society members as volunteer coordinators and define their responsibilities.

9.4 The Society may operate community climbing facilities in cooperation with the relevant school district, municipality and other partners, subject to applicable agreements and policies.

9.5 The Board may pause climbing wall operations for safety or staffing reasons. Any authorized staff member or volunteer may stop an unsafe session immediately.

9.6 Routine maintenance of existing trails and access routes, and the establishment and maintenance of climbing routes, may be undertaken by two or more Society members as authorized Society activities without prior Board approval, provided applicable laws, permissions, land access requirements and Society policies are followed.

9.7 Projects requiring Society funding, construction of new trails, significant alterations to existing trails, or formal landowner agreements require prior Board approval. Reimbursement of unapproved expenses is discretionary, requires receipts, and is not guaranteed.

9.8 Formal partnerships and land access agreements require Board approval. Staff members and volunteers may make minor, low-risk arrangements within authority delegated by the Board.

9.9 The Society may offer scholarships or grants advancing its purposes. Voting members must approve establishment of each program and its funding limit; the Board administers approved programs within that limit.

PART 10 – AMENDMENTS AND DISSOLUTION

10.1 Proposed bylaw amendments may be submitted to the Board for consideration. Amendments require approval by special resolution and any required filing. Nothing in this provision limits statutory member proposal or requisition rights.

10.2 On dissolution, after satisfying liabilities, remaining assets must be distributed in accordance with the Act to one or more eligible nonprofit recipients supporting hiking, climbing, mountaineering or outdoor access, preferably in the Mount Waddington region, as selected by members by special resolution, to the extent legally permitted.